

UNITED STATES DISTRICT COURT
 WESTERN DISTRICT OF TEXAS
 SAN ANTONIO DIVISION

DEMETRIO P. RODRIGUEZ, ET AL X

V. X

CIVIL ACTION NO. _____

SAN ANTONIO INDEPENDENT X
 SCHOOL DISTRICT, ET AL

COMPLAINT

Complainants for their claim allege:

1. Complainants basic claim is that their children have a right to an equal education. The jurisdiction of this Court is invoked under 28 U.S.C. Sec. 1331, this being an action which arises under the Constitution and laws of the United States, viz: Amendment 14, Sec. 1 of said Constitution, and Sec. 1983, 1988, of Title 42, United States Code, wherein the matter in controversy exceeds, exclusive of interest and costs, the sum of \$10,000.00. The jurisdiction of this Court is further invoked under 28 U.S.C. Sec. 1343, this being an action authorized by law to be brought to redress the deprivation under color of statute, regulation, custom, and usage of a State of rights, privileges, and immunities secured by the Constitution of the United States, viz: Amendment 14, Sec. 1 of said Constitution, and Sec. 1983 and 1988 of Title 42, United States Code, all of which hereinafter more fully appears.
2. Complainants reside within the boundaries of the Edgewood Independent School District, which is situated within the City limits of San Antonio, a municipality located in Bexar County, Texas. Each of the Complainants, who are named

below, have children enrolled in the Edgewood Independent School District, as named below, to-wit:

Complainants (Parents)

Children

Demetrio P. Rodriguez
wife, Belen M. Rodriguez

Alexander

Mrs. Alberta Z. Snid,
a widow

Jose
Catalina
Angelina
Selina

Joe Hernandez
wife, Carmen D. Hernandez

Joe, Jr.
Yolanda
Irma
Richard

Martin R. Cantu, Sr.

Linda
Brenda
Blanche

Reynaldo F. Castano

James
Robert
Steve,

except Complainants Jose Fermin Rodriguez and wife, Ramona Rodriguez, who have children in private schools because of the condition of the schools in the Edgewood Independent School District as hereinafter alleged.

3. Plaintiffs sue on behalf of themselves and their children.

In addition, Complainants bring this suit pursuant to Rule 23(a) of the Federal Rules of Civil Procedure on behalf of all other Americans of Mexican descent similarly situated, whose numbers make it impracticable to have them joined as Complainants.

4. Complainants alternatively bring this suit pursuant to Rule 23(a) of the Federal Rules of Civil Procedure on behalf of all persons in the Edgewood Independent School District who have children of school age, who are similarly situated, and whose numbers make it impracticable to have them joined as Complainants.

5. The members of the classes are so numerous as to make

it impracticable to bring them all before this Court; that Complainants, as members of the classes, can and will adequately and fairly represent all the members of the classes, that the character of the rights to be enforced and protected for the classes are several, and that there are common questions of law and fact affecting the several rights of all of the classes, and a common relief is sought.

6. Article 7, Sec. 1, of the Texas Constitution requires the State legislature to provide a public free school system. Article 7, Sec. 3, of the Texas Constitution allows for a system of taxation to be set up by the legislature and levied by the school districts. The Texas legislature in enacting Title 49, Vernon's Ann. Civ. St. has set up a system under which the Defendant school districts were organized. Each district levies and collects taxes on property within its district. The money collected by a district must be used solely within and for the district in which it is collected under the requirements of Article 7, Sec. 3 of the Texas Constitution. Provision is made for consolidation of school districts under Article 2806, Texas Civil Statutes. This is the method of consolidation allowed by law applicable to the districts in question, although other methods of consolidation are provided for other districts. Such consolidation requires an election in which a majority of those voting in all school districts involved must vote for consolidation in order to effectuate consolidation.

7. The Defendant school districts are: San Antonio Independent School District, Edgewood Independent School District, Harlandale Independent School District, Northside Independent School District, Northeast Independent School District, Alamo Heights Independent School District and South San Antonio Independent School District. Each lies wholly or partly

within the City of San Antonio and geographically they lie and are situated in one continual and contiguous urban complex that comprises the City of San Antonio and its environs.

Neither cities or counties geographically determine their boundaries. No natural geographical reasons exist for their present boundaries. Each of the other Defendant school districts collects and spends substantially more money per student for their education than the Edgewood Independent School District, and such other Defendant school districts are able to provide a substantially higher quality of education for their students than the Edgewood Independent School District is able to provide its students.

8. The students at Edgewood Independent School District are practically all Americans of Mexican descent. There has been a pattern of discrimination against this class of citizens in the Southwestern United States. That the independent school district system allows for this discrimination and the statutes setting up such a scheme are therefore unconstitutional. That the scheme of discrimination is willful.

9. Alternatively, Complainants claim that the State in providing for education must make available and create a system of equal education and opportunity of education for all its citizens. That the system of numerous independent school districts within the same geographic metropolitan area allows for the conditions that exist in this case in which there are vast differences in educational facilities and monies spent for each student's education. That the system of independent school districts created through the statutes designated herein is in violation of Amendment XIV of the U. S. Constitution because of the inequality of the expenditure of money for education and the inequality of education created thereby.

join state
(Bd. of Ed.
Com. of Ed.)

10. Defendant, Crawford Martin, is the Attorney General of the State of Texas, and in his capacity as Attorney General, has sought to uphold and enforce Title 49 of Vernon's Ann. Civ. St. and more especially Article 2806, Texas Civil Statutes and Article 7, Sec. 3 of the Texas Constitution, such action deprives Complainants and the classes they represent of the right to an education equal to other persons living in the same metropolitan area, such deprivation being in violation of Amendment 14 of the U. S. Constitution.

WHEREFORE, Complainants pray that Article 7, Sec. 3 of the Texas Constitution and Article 2806, Texas Civil Statutes be declared unconstitutional or unenforceable insofar as they interfere with the creation of a system providing for equal education within a geographic metropolitan area; that the Court enjoin Defendants from acting under or enforcing the terms of said State statutes to deprive the Complainants of an equal education; that the Court order Defendants to provide equal educational funds and facilities to all students within the San Antonio metropolitan area, and enjoin the Defendants from discriminating against the Complainants with regard to public free school education.

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